

Important Information for Tentative Rulings and Hearings:

1. Please review and follow the Tentative Ruling Instructions which can be found on the Court's website using the following link: <https://sf.courts.ca.gov/divisions/unified-family-court/ufc-tentative-rulings>.
2. If you wish to make an objection to the Tentative Ruling in your case, you must notify the other party (unless there is a restraining order in place) and the Court Clerk in the Department where the hearing is scheduled of your objection by 4:00 PM the Court day prior to the hearing date. Court days do not include Court holidays, Saturdays, or Sundays. The Court's Holiday Schedule can be found on the Court's website using the following link: <https://sf.courts.ca.gov/general-information/holiday-schedules>.
3. To contact the Court Clerk in Dept. 403 to make an objection to the Tentative Ruling in your case, please call (415) 551-3741 or send an email to Department403@sftc.org.
4. To contact the Court Clerk in Dept. 404 to make an objection to the Tentative Ruling in your case, please call (415) 551-3744 or send an email to Department404@sftc.org.
5. To contact the Court Clerk in Dept. 414 to make an objection to the Tentative Ruling in your case, please call (415) 551- 3756 or send an email to Department414@sftc.org.
6. When you contact the Court Clerk to make an objection to the Tentative Ruling in your case, please specify the paragraph(s) and / or line number(s) of the Tentative Ruling which contains the language to which you object.
7. You may appear at your hearing either (a) in-person; (b) by video; or (c) by phone. Pursuant to SFLR 11.7(D)(4), if you choose to appear by video or phone, you must be continuously connected to Zoom from 8:50 a.m. until 12:00 p.m. or until your hearing is concluded (or from 1:20 p.m. until 4:30 p.m. or until your hearing is concluded, if your hearing is scheduled to start at 1:30 p.m.). If you fail to appear in-person, by video, or phone, the Court may proceed with the hearing in your absence. The Court is not required to contact you before your hearing.
8. If you choose to appear by video or by phone, you must comply with the Notice and Instructions for Remote Appearances in San Francisco Family Court set forth below.

**SAN FRANCISCO SUPERIOR COURT
UNIFIED FAMILY COURT
NOTICE AND INSTRUCTIONS FOR REMOTE APPEARANCES**

You may appear at your court hearing either (1) in-person or (2) remotely by video or telephone. If you fail to appear in-person or remotely by video or telephone, the court may proceed with the hearing in your absence. **The clerk will NOT contact you.** Remote appearances by video or telephone can be made utilizing the **ZOOM** platform, **effective January 2, 2024:**

- If you are *joining by video*, go to www.zoom.com/join and follow the instructions below:
 - Type in the Meeting ID (*see below for department Meeting IDs and Passcodes*) and click "Join".
 - Click "Launch Meeting" then "Open zoom.us".
 - Zoom will launch and you will be asked for the Meeting Passcode. *Enter the passcode for your Meeting ID for the respective department for your court hearing.*
 - Enable your camera and click "Join".
 - Once you join, a prompt to use computer audio will appear, click "Join with Computer Audio".
 - **Enter your full first and last name TO IDENTIFY YOURSELF TO THE COURT.**
 - Using headphones may help you hear more clearly.
- If you are *joining by phone*, dial 1-(669)254-5252 or 1-(669)216-1590 and enter the Meeting ID and Passcode as described below.

Department 403
Meeting ID: 161 463 0304
Passcode: 114482

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1614630304?pwd=OTZ1cVZaQlRYWXPfQ2hTaEFuZnhIZz09>

Department 404
Meeting ID: 161 305 3325
Passcode: 282709

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1613053325?pwd=SkdXWGVkQkQowckJSNnJwSSStYkR6dz09>

Department 414
Meeting ID: 161 123 0725
Passcode: 040696

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1611230725?pwd=d1JPVDZmSEZTMlpuODhJVtZ4ZE1FZz09>

When you join the hearing on Zoom:

1. **You are to mute your audio when you are not speaking.**
2. State your name before you speak for proper identification to the court and for all the parties in your case. Only one person **MUST** speak at a time.

PROHIBITION ON RECORDING: **Do not record the hearing in any way.** Any recording of a court proceeding, *including screen shots, other visual or audio copying* of the hearing, is **prohibited**. Any violation is punishable to the fullest extent under the law, including but not limited to monetary sanctions up to \$1,000, restricted entry to future hearings, or other sanctions deemed appropriate by the court.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

COUNTY OF SAN FRANCISCO,

Petitioner

VS.

KENNETHAN BAIRD,

Respondent

) Case Number: FCS-17-352589

) Hearing Date: September 15, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER FOR CHANGE OF TEMPORARY EMERGENCY ORDER, VISITATION
(PARENTING TIME)

TENTATIVE RULING

The parties are ordered to appear on 9/15/2026 at 9am in Department 404 in-person or by Zoom video. If a party chooses to appear by Zoom, that party must abide by the Notice and Instructions for Remote Appearance in San Francisco Family Court set forth above.

A. Procedural History

- 1) Respondent Kennethan Baird (Father) and Other Parent Bobbie Kashena Grayson (Mother) have one minor child together, Kayla (DOB 5/17/2015, age 11). The parties have joint legal custody and Mother has sole physical custody, with parenting time for Father on the second and fourth weekends of each month, from school or camp pick up (or if school or camp is not in session, drop off at Father's house, curbside, on Friday at 5pm) to Sunday at 5pm, drop off at Mother's home, curbside. Due to conflict between Father and Kayla, the Court previously ordered them to participate in family therapy.
- 2) On for hearing is Mother's ex parte request for an order suspending Father's parenting time and a gradual step-up to unsupervised parenting time while he participates in an anger management

1 class. Mother states that on 6/26/2026, Kayla reported to both Mother and to an officer that Father
2 "grabbed, pushed, hit, humiliated, yelled, and cussed at her." Mother states that Kayla was visibly
3 distressed, repeatedly expressed fear of Father, and asked Mother not to talk to Father about the
4 incident because she believed it would anger him more. The Court set the ex parte request for
5 hearing on shortened time for 9/15/2026, ordered the parties to attend mediation, and ordered
6 Father to ensure peaceful and health parenting time with Kayla. On 9/4/2026, Mother filed a
7 declaration, which the Court has reviewed and considered. Mother states, among other things,
8 that Kayla continues to be fearful of Father, has been in individual therapy since 6/25/2026, and
9 has been diagnosed with "chronic posttraumatic stress disorder, anxiety, and parent-child
10 problem." Mother states that Father has not exercised his parenting time since the 6/26/2026
11 incident.

12 3) The parties attended mediation and did not reach an agreement.

13 4) Father has not filed a responsive declaration.

14 **B. Findings and Orders**

15 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
16 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in
17 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
18 child is the United States.

19 **2) The parties are ordered to appear in person or via Zoom video on 9/15/2026 at 9am in**
20 **Department 404.**

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

COUNTY OF SAN MATEO,

Petitioner

VS.

GIANCARLO MALLARI ROMERO,

Respondent

) Case Number: FCS-24-356843

) Hearing Date: September 15, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FRO ORDER : TEMPORARY EMERGENCY ORDER, CHILD CUSTODY, VISITATION
(PARENTING TIME), ORDER SHORTENING TIME

TENTATIVE RULING

**The parties are ordered to appear on 9/15/2026 at 9am in Department 404 in-person or by
Zoom video. If a party chooses to appear by Zoom, that party must abide by the Notice and
Instructions for Remote Appearance in San Francisco Family Court set forth above.**

A. Procedural History

- 1) Respondent Giancarlo Mallari Romero (Father) and Other Parent Madilyn Cabico Domingo (Mother) have one minor child together, Giana (DOB 3/10/2021, age 5). Father lives in San Francisco; Mother lives in Belmont. There are no custody orders.
- 2) On for hearing is Father's 7/10/2026 ex parte request in which he seeks joint legal and physical custody of Giana, with parenting time for Mother from Friday to Sunday evening. He states he has been Giana's primary caregiver and has taken care of her daily needs. He describes an incident during which he gave a "light tap" to Giana's head on 6/25/2026 and his mother (the paternal grandmother) reported the incident to Mother. Thereafter, Mother told Father that she would be caring for Giana because she did not believe Giana was safe in Father's care. Father

1 states he "regrets using any physical discipline" and will never do so again, but that Giana is safe
2 with him and needs to be returned to his care so that she can attend Kindergarten in San
3 Francisco, receive the IEP services that she needs, and attend dental and other appointments. The
4 Court set the matter for hearing on shortened time for 9/15/2026 and ordered the parties to attend
5 mediation on 9/1/2026.

6 3) Father appeared at mediation; Mother did not. Mother has not filed a responsive declaration.

7 **B. Findings and Orders**

8 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
9 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in
10 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
11 child is the United States.

12 **2) The parties are ordered to appear in person or via Zoom video on 9/15/2026 at 9am in**
13 **Department 404.**

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

HOANG NHAT TRAN,

Petitioner

VS.

YANXIA XIE,

Respondent

) Case Number: FPT-23-378259

) Hearing Date: September 15, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

OTHER REVIEW HEARING

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) Hoang Nhat Tran (Father) and Yanxia Xie (Mother) have one minor child together, Jamie (DOB 5/17/2017, age 8). Father was determined to be Jamie's biological father in October 2025. On 10/20/2025, this Court issued a 5-year Domestic Violence Restraining Order (DVRO) protecting Mother, Jamie, and Mother's older daughter from another relationship. The Court awarded Mother sole legal and physical custody of Jamie, with 2 hours of weekly professionally supervised visits for Father (costs of supervision to be paid by Father).
- 2) The Court has held review hearings since the 10/20/2025 hearing. Father has not exercised his parenting time regularly, and custody and visitation has remained as previously ordered, with some minor modification, most significantly the addition of weekly phone/video calls via Our Family Wizard. This matter is on for a further review hearing on 9/15/2026.
- 3) On 9/4/2026, Mother filed an update declaration stating Father has not initiated any phone/video calls via Our Family Wizard and has not exercised any of his visitation rights since the last

review hearing of 6/12/2026. She states that the most recent contact between Father and Jamie was over 6 months ago, on 3/1/2026.

- 4) Father has not filed an update declaration.

B. Findings and Orders

- 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in violation to civil or criminal penalties, or both. The country of habitual residence of the minor child is the United States.
- 2) Father's in-person supervised parenting time with Jamie (i.e., 2 hours of weekly professionally supervised visits) is temporarily suspended. If and when Father wishes to resume in-person supervised parenting time, he shall contact Mother via Our Family Wizard to schedule phone/video calls. The parties shall in good faith work together to schedule the phone/video calls. After Father has had at least 3 phone/video calls with Jamie within a 45-day period, he shall be entitled to resume his in-person parenting time.
- 3) To exercise his in-person parenting time, Father shall, after the end of his 3 phone/video calls, notify Mother via Our Family Wizard of his intent to resume in-person parenting time. Thereafter, he shall be entitled to 2 hours of professionally supervised visits **every other** Sunday or Saturday after 12pm, the time, date, and exchange location to be arranged by the parties, subject to the professional supervisor's availability. The first professionally supervised visit may occur at any time after the 3 video calls occur.
- 4) After Father has consistently exercised his alternating, in-person parenting time for a period of 3 months, his in-person parenting time shall be increased to 2 hours of professionally supervised visits **every** Sunday or Saturday after 12pm, the time, date, and exchange location to be arranged by the parties, subject to the professional supervisor's availability.
- 5) All prior orders not in conflict with these orders shall remain in full force and effect.
- 6) Mother's attorney shall prepare the Findings and Order After Hearing.
- 7) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule

1 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
2 proposed order after hearing directly to the court. Failure to submit the order after hearing within
3 10 days may allow the other party to prepare a proposed order and submit it to the court in
4 accordance with CA Rules of Court, Rule 5.125(d).
5
6
7
8
9
10
11
12
13
14
15
16
17
18
19
20
21
22
23
24
25
26
27
28
29

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

ERIC CHANG LAGANDAON,

Petitioner

VS.

MICHELLE MARGARET LAGANDAON,

Respondent

) Case Number: FDI-14-782621

) Hearing Date: September 15, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER RE: CHANGE OF SPOUSAL OR PARTNER SUPPORT, CHILD SUPPORT,
AND REIMBURSEMENT OF CHILD SUPPORT OVERPAYMENTS

TENTATIVE RULING

The parties are ordered to appear in-person or by Zoom video at 9:00 AM on Tuesday, 9/15/2026 in Dept. 404 for the Court to make orders regarding any child and spousal support overpayments for the period 5/1/2026 – 9/15/2026. The parties shall be prepared to inform the Court what amount in child and spousal support payments Mother may have paid to Father between 5/1/2026 – 9/15/2026.

If a party chooses to appear by Zoom, that party must abide by the Notice and Instructions for Remote Appearance in San Francisco Family Court set forth above.

A. Procedural History

- 1) Petitioner Eric Lagandaon (Father) and Respondent Michelle Green (formerly Lagandaon) (Mother) married on 7/15/2003 and separated on 10/22/2014, for a marriage of 11 years and 3 months. The parties have three children, Mya (DOB: 10/18/2003, age 22), Mason (DOB: 12/19/2008, age 17), and Myles (DOB: 6/12/2012, age 14). Both parties are self-represented.
- 2) On 4/17/2015, a Dissolution Judgment was entered which provides in relevant part:
 - a. The parties share custody of the children according to a 2-2-5 schedule.

- b. Mother shall pay Father guideline child support of \$1,442 per month, which is based on Mother's income of \$11,400 per month and Father's income of \$3,500 per month.
- c. The parties shall share equally uninsured medical expenses and the costs of education and special needs of the children.
- d. The parties stipulated to Mother paying Father \$1,102 per month in guideline spousal support. The Judgment provides, "Court retains jurisdiction to modify or terminate spousal support." The Judgment also provides: "It is the goal of this State that each party must make reasonable good faith efforts to become self-supporting as provided for in Family Code section 4320. The failure to make reasonable good faith efforts may be one of the factors considered by the Court as a basis for modifying or terminating support."
- 3) Now on for hearing is Mother's Request for Order filed 5/1/2026 asking to modify child support; terminate spousal support for Father; and reimburse Mother for child support overpayments for their oldest child Mya. Mother states she continued to pay child support for Mya several years past the date Mya turned 18 on who turned 18 on 10/18/2021. Mother states that Father's income has "tripled" in the past 12 years and he no longer requires support. Mother also notes that she has been paying support to Father for nearly 12 years, which is longer than the length of the parties' marriage.
- 4) On 5/1/2026, Mother filed an Income and Expense Declaration. Mother states that she is 50 years old and is the VP of HR for Conga. Mother states that she earns \$25,000 per month. Mother states that her actual monthly expenses total \$20,000 per month. Mother did not attach paystubs to her Income and Expense Declaration.
- 5) On 6/17/2026, Mother filed a declaration stating that she has paid support to Father since 2014. Mother states that their eldest child Mya reached the age of majority in October 2021, but Mother continued paying child support for Mya several years past that date. Mother states that Mason and Myles have begun living with her significantly more than 50% of the time. Mother attached as an exhibit a custody calendar for the period June 2025 – June 2026, which shows that during this period Mason was in Father's custody for 31 out of 395 days (8% of the time) and Myles was in Father's custody for 83 out of 395 days (21% of the time). Mother states that Father's current income is substantially higher than it was when the Judgment was entered. Mother states that

1 Father continues to live in the same family-owned apartment he occupied during their marriage.
2 Mother states that when she lived in that apartment, the rent was approximately \$500 per month.
3 Mother also states that the current support order does not reflect the financial dynamic of the
4 parties' marriage. Mother states that during marriage, Father was the primary earner, but during
5 the final two years of marriage, Father operated a restaurant and Mother's income exceeded
6 Father's. Mother also states that during their marriage, Father verbally, emotionally, financially,
7 and physically abused her. Mother states that Father lied to her about money being directed to
8 savings accounts, smeared feces in her mouth and across her face, headbutted Mother in the
9 mouth, and told their younger child to urinate in her purse. Mother states that she did not return to
10 Court sooner because she wanted to minimize contact and reduce direct conflict with Father and
11 because Father threatened to quit his job.

12 6) On 7/17/2026, Mother filed another declaration to which she attached a Spousal Support
13 Declaration Attachment (FL-157).

14 7) On 8/25/2026, Father filed a Responsive Declaration. Father states that it is not true that Mason
15 and Myles have been in Mother's care for more than 50% of the time (however, the Court notes
16 that Father did not address Mother's exhibit which shows the days in which Mason and Myles
17 were in her care between June 2025 and June 2026). Father states that his income was \$3,500 in
18 April 2015 (when the Judgment was entered) and his income is now \$8,000. Father states his rent
19 is currently \$1,769 per month. Father asks the Court to maintain the current spousal support
20 order. Father also asks the Court to maintain the current child support orders, but agrees to
21 reimburse Mother for overpayments for Mya. Father attached to his declaration a Spousal Support
22 Declaration Attachment (FL-157).

23 8) On 8/31/2026, Father filed an Income and Expense Declaration. Father states that he is 51 years
24 old and works 40 hours per week as a case worker for Genentech. The paystubs attached to
25 Father's Income and Expense Declaration show that Father regularly earns 40 hours x \$49.91 per
26 hour = \$1,996.40 per week, which averages out to \$8,651 per month. Father's paystubs also
27 show that he earned \$87,590 in year-to-date total income as of 6/14/2026 (including bonuses,
28 overtime, and stock), which averages out to approximately \$15,925 per month. Father states that
29 his monthly expenses total \$8,169.

1 9) On 9/9/2026, Mother filed a declaration. Mother attached a custody calendar for the period
2 8/1/2026 – 9/8/2026 which shows that Mason was in Mother’s care 80% of the time during this
3 period and Myles was in Mother’s care 72% of the time during this period. Mother states that two
4 years ago, the parties agreed that Mason and Myles could choose where they stay and they have
5 chosen to stay the vast majority of time with Mother. Mother states that the residence where
6 Father resides has been owned by Father’s family since the 1970s, there is no mortgage on the
7 home, and the property taxes owed are \$1,300 per year. Mother asks the Court to require
8 documentation of a lease or a declaration from the property owner regarding Father’s claimed
9 rent figure. Mother also asks, for the first time, that Father reimburse her \$20,500 which
10 represents half of Mya’s college housing costs for the years 2021 – 2024.

11 **B. Findings and Order**

- 12 1) Under Family Code section 3901, the Court finds that Mother’s duty to pay child support for Mya
13 ended when Mya turned 18 on 10/18/2021, not in May 2021 when she graduated from high
14 school. Mother therefore overpaid child support for Mya between November 2021 and March
15 2026, a period of 53 months, in the amount of $\$301 \times 53 = \$15,953$. Effective 10/15/2026, Father
16 shall pay to Mother \$1,329 per month (in addition to his monthly child support obligation) for a
17 period of 12 months to repay the child support overpayments for Mya.
- 18 2) Although the Judgment requires the parties to share equally “education” costs for the children,
19 there is no language in the Judgment which extends this requirement past the children’s age of
20 majority. Therefore, Mother’s request that Father reimburse her \$20,500 for half of Mya’s college
21 housing costs is denied.
- 22 3) Mother’s request that the Court order Father to provide documentation of a lease or a declaration
23 from the property owner regarding Father’s claimed rent figure is denied. Mother may conduct
24 discovery.
- 25 4) The Court finds that Mason is in Mother’s care 80% of the time and that Myles is in Mother’s
26 care 70% of the time. The Court also finds that both parties’ incomes have significantly increased
27 since the prior child support order was made. The Court finds these are material changes in
28 circumstance warranting a modification of child support.
- 29

- 1 5) Effective 5/1/2026 (the date Mother filed her Request for Order), in accordance with the XSpouse
2 calculation attached hereto and incorporated herein, Father shall pay child support to Mother in
3 the amount of \$111 per month.
- 4 6) As neither party has requested a Smith / Ostler child support order, the Court will not enter one at
5 this time.
- 6 7) The XSpouse calculation shows that after Father pays Mother \$111 per month in child support,
7 Father will have 26% of the parties' combined net spendable income and Mother will have 74%
8 of the parties' combined net spendable income. However, because Father receives significant
9 compensation in addition to his base pay, and because the Court is not making a Smith / Ostler
10 order at this time, the Court does not find good cause to modify the child support add-on orders
11 set forth in the Judgment. The parties shall continue to share equally all childcare costs related to
12 employment or reasonably necessary job training; all uninsured medical expenses for Mason and
13 Myles; and costs related to education or special needs of Mason and Myles.
- 14 8) Based on the findings under Family Code section 4320 set forth below, in particular that Father is
15 presently able to meet his needs, Father is able maintain the marital standard of living without
16 spousal support from Mother, and Father has received spousal support for nearly the entire
17 duration of the marriage, the Court finds good cause to terminate its jurisdiction to award spousal
18 support to Father effective 5/1/2026 (the date Mother filed her Request for Order).
- 19 9) The Court makes the following findings under Family Code section 4320.
- 20 a. The extent to which the earning capacity of each party is sufficient to maintain the
21 standard of living established during the marriage, taking into account all of the
22 following: (1) The marketable skills of the supported party; the job market for those
23 skills; the time and expenses required for the supported party to acquire the appropriate
24 education or training to develop those skills; and the possible need for retraining or
25 education to acquire other, more marketable skills or employment. (2) The extent to
26 which the supported party's present or future earning capacity is impaired by periods of
27 unemployment that were incurred during the marriage to permit the supported party to
28 devote time to domestic duties.
- 29

1 i. Mother states that during marriage the parties earned \$80,000 - \$130,000
2 annually combined. Father states that during marriage the parties earned
3 \$160,000 - \$180,000 annually combined. Father is currently earning \$8,651 in
4 gross per month, which averages out to \$103,812 per year. Father's 6/14/2026
5 paystub shows that he earns significant compensation in addition to his base pay.
6 As of 6/14/2026, Father's has earned on average \$15,925 per month in total
7 compensation. Father is also living in the same apartment the parties lived in
8 during marriage. The only other individuals who live with Father are Mason and
9 Myles. The Court finds that Father is able to fully support himself at the marital
10 standard of living.

11 b. The extent to which the supported party contributed to the attainment of an education,
12 training, a career position, or a license by the supporting party.

13 i. Father states Mother earned her Masters in HR during marriage, during which
14 time Father watched the children while she completed her schoolwork. Mother
15 states she paid for her degree entirely using inheritance money from her mother.

16 c. The ability of the supporting party to pay spousal support, taking into account the
17 supporting party's earning capacity, earned and unearned income, assets, and standard of
18 living.

19 i. Mother earns \$300,000 annually. She lives with her current husband who earns
20 \$10,800 per month. Mason and Myles live with Mother the majority of the time.
21 The parties' daughter Mya (age 22) is also living with Mother fulltime. A fourth
22 child also lives with Mother and her new husband (presumably this child is either
23 her new husband's child or a child Mother had with her new husband).

24 d. The needs of each party based on the standard of living established during the marriage.

25 i. Both parties are able to live at or above the marital standard of living using their
26 income alone.

27 e. The obligations and assets, including the separate property, of each party.

28 i. Neither party listed significant assets or debts in their Income and Expense
29 Declarations.

1 f. The duration of the marriage.

2 i. The parties agree they were married for a period of 11 years and 4 months.

3 Mother states she has paid support to Father for a period of almost 12 years.

4 g. The ability of the supported party to engage in gainful employment without unduly
5 interfering with the interests of dependent children in the custody of the party.

6 i. The record shows that Father is able to work 40 hours per week. The children are
7 in Mother's care the majority of the time. The minor children are also older now,
8 ages 14 and 17.

9 h. The age and health of the parties.

10 i. Father is 51 and Mother is 50. Father states that he has high blood pressure. The
11 parties agree that Mother has multiple sclerosis.

12 i. All documented evidence of any history of domestic violence, as defined in Section 6211,
13 between the parties or perpetrated by either party against either party's child, including,
14 but not limited to, consideration of: (1) A plea of nolo contendere. (2) Emotional distress
15 resulting from domestic violence perpetrated against the supported party by the
16 supporting party. (3) Any history of violence against the supporting party by the
17 supported party. (4) Issuance of a protective order after a hearing pursuant to Section
18 6340. (5) A finding by a court during the pendency of a divorce, separation, or child
19 custody proceeding, or other proceeding under Division 10 (commencing with Section
20 6200), that the spouse has committed domestic violence.

21 i. Mother has not filed a Request for Domestic Violence Restraining Order to date.
22 However, Mother states that Father verbally, emotionally, financially, and
23 physically abused her. Father did not refute these assertions.

24 j. The immediate and specific tax consequences to each party.

25 i. The Court does not find that this factor, as applied to this case, has any material
26 impact on its spousal support determination.

27 k. The balance of the hardships to each party.

28 i. The Court does not find that this factor, as applied to this case, has any material
29 impact on its spousal support determination.

1 l. The goal that the supported party shall be self-supporting within a reasonable period of
2 time. Except in the case of a marriage of long duration as described in Section 4336, a
3 “reasonable period of time” for purposes of this section generally shall be one-half the
4 length of the marriage. However, nothing in this section is intended to limit the court’s
5 discretion to order support for a greater or lesser length of time, based on any of the other
6 factors listed in this section, Section 4336, and the circumstances of the parties.

7 i. The parties agree they were married for a period of 11 years and 4 months.

8 Mother states she has paid support to Father for a period of almost 12 years. The

9 Court finds that Father has the ability to support himself at the marital standard of
10 living using his earnings alone.

11 m. The criminal conviction of an abusive spouse shall be considered in making a reduction
12 or elimination of a spousal support award in accordance with Section 4324.5 or 4325.

13 i. The Court has not been provided with any evidence of a criminal conviction of
14 either spouse.

15 n. Any other factors the court determines are just and equitable.

16 i. The Court does not find any additional factor necessary for its determination.

17 **10) The parties are ordered to appear in-person or by Zoom video at 9:00 AM on Tuesday,**
18 **9/15/2026 in Dept. 404 for the Court to make orders regarding any child and spousal**
19 **support overpayments for the period 5/1/2026 – 9/15/2026. The parties shall be prepared to**
20 **inform the Court what amount in child and spousal support payments Mother may have**
21 **paid to Father between 5/1/2026 – 9/15/2026.**
22
23
24
25
26
27
28
29

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

JOHN PAUL AGUIRRE,

Petitioner

VS.

DALE ANTHONY AGUIRRE,

Respondent

) Case Number: FDI-22-796849

) Hearing Date: September 15, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

OTHER REVIEW HEARING

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) Petitioner John Paul Aguirre and Respondent Dale Anthony Aguirre married on 10/24/2015 and separated on 5/18/2022, for a marriage of 6 years and 6 months. The parties have two minor children, Ava (DOB: 7/26/2019, age 6) and Ace (DOB: 3/31/2021, age 5). Petitioner is self-represented, but Respondent states Petitioner uses the attorneys at Van Voorhis & Sosna LLP as consultants. Respondent is represented by attorney Vanessa Hierbaum and her Kaye Moser Hierbaum Ford LLP.
- 2) On 7/25/2024, a Judgment of Dissolution was entered, which incorporates the parties' Marital Settlement Agreement. The Judgment provides in pertinent part:
 - a. The parties are bound by a prenuptial agreement executed on 10/1/2015.
 - b. The Court's jurisdiction to award spousal support to either party is terminated.
 - c. The child custody and visitation Stipulations and Orders filed 7/13/2023, 9/29/2023, and 12/7/2023 shall remain in full force and effect.

- d. Effective 1/1/2024, Petitioner shall pay Respondent base guideline child support of \$3,965 per month pursuant to the attached Dissomaster report (which is based on the parties sharing 50% time of their children, Petitioner earning \$36,666 per month in base income, and Respondent earning \$1,950 per month in base income).
 - e. Both parties are subject to a Smith / Ostler child support order.
 - f. The parties shall share equally unreimbursed healthcare expenses for the children.
 - g. Respondent shall notify Petitioner of any new employment within one week of entering into any employment agreement and child support shall be modifiable retroactively to the start date of Respondent's new employment.
 - h. Petitioner shall pay Respondent \$32,500 as a contribution to Respondent's attorney's fees and costs "incurred to date in this proceeding."
- 3) At the prior 4/16/2026 hearing, the Court adjudicated Respondent's Request for Order filed 2/10/2026 wherein Respondent requested increased child support and need-based attorney's fees. Per the Findings and Order After Hearing filed 6/26/2026, the Court made the following orders:
- a. Effective 5/15/2026, Respondent shall spend 20 hours per week seeking work and apply to at least 5 jobs per week.
 - b. Effective 2/10/2026, Petitioner shall pay to Respondent \$5,425 per month in base guideline child support.
 - c. Effective 2/10/2026, in addition to the monthly child support payment set forth above, each party shall pay as additional child support to the other party a portion of any and all additional gross income received in excess of the amount set forth in XSpouse calculation (\$475,000 per year in salary income for Petitioner and \$0 in salary income for Respondent), pursuant to the Bonus Tables attached hereto and incorporated herein.
 - d. Petitioner shall pay Respondent \$55,000 for need-based attorney's fees and costs for fees and costs incurred between the date the parties entered into their settlement agreement through the date of the 9/15/2026 review hearing.
 - e. A review hearing is set for Tuesday, 9/15/2026 at 9:00 AM in Dept. 404 to review Respondent's seek work efforts, to consider imputing income to Respondent, and to review child support.

1 4) On 8/26/2026, Respondent filed an Update Declaration asking the Court to terminate the seek
2 work order (while he gets his health under control) and deny any imputation of income to him
3 because his disability status is currently being recertified and he expects a determination in the
4 coming weeks. Respondent states that he continues to experience chronic fatigue, persistent
5 cough, and gastrointestinal symptoms, and he is being treated for diabetes and moderately severe
6 depression. Upon advice from his currently treating physician (and following a lapse in care due
7 to various factors), Respondent reapplied for disability certification on 8/21/2026. Respondent
8 states he has exhausted his SDI benefits and is in the process of filing for bankruptcy because of
9 how dire his financial situation is. Respondent states he has done his best to abide by the week
10 work order, but sometimes his symptoms flare and he is unable to engage in job search activity or
11 he has had to dedicate significant time to this litigation, including responding to extensive
12 discovery requests.

13 5) On 8/26/2026, Respondent filed a Statement of Support Calculations wherein Respondent
14 requests \$5,428 per month in guideline child support (essentially the same amount he is receiving
15 now).

16 6) On 8/26/2026, Respondent filed an Income and Expense Declaration.

17 7) On 9/4/2026, Petitioner filed an Income and Expense Declaration.

18 8) On 9/4/2026, Petitioner filed an Update Declaration. On 9/9/2026, Petitioner filed an Amended
19 Update Declaration. Petitioner asks the Court to:

20 a. Find that Respondent has not complied with the seek work order and order continued
21 monthly compliance and production of supporting documentation;

22 b. Find that the present evidence does not establish that Respondent's earning capacity is
23 zero;

24 c. Impute Respondent with \$172,304 in annual income based on his historical earnings,
25 professional experience, and current evidence of available employment and prevailing
26 salaries. In the alternative, impute Respondent with \$96,000 annually, corresponding to
27 the \$8,000 in monthly expenses Respondent reports under penalty of perjury on his
28 current Income and Expense Declaration. In the alternative, and at a minimum, impute
29

1 full-time earnings at San Francisco's minimum wage of \$19.61 per hour, approximately
2 \$40,788.80 annually.

- 3 d. Order guideline support and bonus support as set forth in Petitioner's Exhibit 1.
4 e. Order 2025 child support arrears of \$13,658.13, plus statutory interest if applicable.
5 f. In the alternative, if the Court concludes that Respondent's pending disability application
6 must be resolved before determining earning capacity, set a "short, date-certain
7 continuance of the imputation/support issues, prompt production of the disability
8 determination and supporting physician certification, and continuation of the Seek Work
9 Order except to the extent competent medical evidence establishes specific work
10 restrictions."

11 **B. Findings and Order**

- 12 1) The Court finds good cause to continue this review hearing to a date following the anticipated
13 determination of Respondent's pending disability recertification. The Court hereby sets a future
14 hearing date of **Tuesday, 12/8/2026 at 9:00 AM in Dept. 404** to review Respondent's seek work
15 efforts, to consider imputing income to Respondent, and to review child support.
16 2) Respondent's request to terminate the seek work order is denied at this time. The Court will
17 revisit this issue at the next hearing date.
18 3) At least 20 calendar days prior to the next hearing date, Respondent shall file and serve an
19 updated Income and Expense Declaration, a declaration (not to exceed 5 pages in length, not
20 including exhibits) summarizing Respondent's work search efforts to date and providing his
21 position on whether he should be imputed with income, and a Statement of Support Calculations.
22 Respondent shall attach to his declaration his Work Search Logs.
23 4) At least 10 calendar days prior to the next hearing date, Petitioner shall file and serve an updated
24 Income and Expense Declaration (with all sections fully completed), a declaration (not to exceed
25 5 pages in length, not including exhibits) providing his position on whether Petitioner should be
26 imputed with income, and a Statement of Support Calculations.
27 5) Respondent's attorney shall prepare the Findings and Order After Hearing.
28 6) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
29 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other

1 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
2 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
3 proposed order after hearing directly to the court. Failure to submit the order after hearing within
4 10 days may allow the other party to prepare a proposed order and submit it to the court in
5 accordance with CA Rules of Court, Rule 5.125(d).
6
7
8
9
10
11
12
13
14
15
16
17
18
19
20
21
22
23
24
25
26
27
28
29

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

FUAT CELEBI,

Petitioner

VS.

UNZULE CELEBI,

Respondent

) Case Number: FDI-25-800869

) Hearing Date: September 15, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REVIEW HEARING, SEE FOAH FILED 3/24/26 IN ANCILLARY CASE

TENTATIVE RULING

The parties are ordered to appear in person or via Zoom video at 9am on 9/15/2026 in Department 404. The parties shall be prepared to discuss alternatives to Rally visitation for Mother and provide updates to the Court regarding Mother's video visits and family therapy.

If a party chooses to appear by Zoom, that party must abide by the Notice and Instructions for Remote Appearance in San Francisco Family Court set forth above.

A. Procedural History

- 1) Petitioner Fuat Celebi (Father) and Respondent Unzule Celebi (Mother) have one minor child together, Muhammed (DOB 8/10/2017, age 9). On 1/20/2026, the parties entered into a Stipulation and Order in which they agreed, among other things, to withdraw their mutual requests for Domestic Violence Restraining Orders, to award temporary sole legal and physical custody of Muhammed to Father, and to award parenting time to Mother up to 5 afternoons a week, with pick up and drop off at Muhammed's school's after care program (drop off no later than 5pm), and with Mother not removing Muhammed from school grounds unless Muhammed and school staff agree. The parties entered into various additional agreements regarding therapy,

1 communication through Talking Parents or a comparable app, and access to Muhammed's school
2 and medical records.

- 3 2) At a 3/24/2026 review hearing, the Court maintained temporary sole legal and physical custody to
4 Father and modified Mother's parenting time to weekly 2-hour supervised visits through Rally
5 Family Visitation Services (Rally), subject to Rally's availability. The Court also awarded Mother
6 weekly video calls and additional calls on Mother's Day and Mother's and Muhammed's
7 birthdays if she does not have in person parenting time on those days. The Court reiterated its
8 prior order regarding family therapy and ordered the parties to split the costs of family therapy
9 equally. The Court set the matter for a further review hearing on 7/15/2026. At the 7/15/2026
10 hearing, the Court continued the review hearing to 9/15/2026 after being informed by the parties
11 that Rally visitation had not yet started.
- 12 3) On 8/10/2026, the Court received a report from Rally that Rally will not be able to provide the
13 family with services because it does not have a Turkish-speaking provider who will be able to
14 effectively communicate with Mother regarding important matters that may arise before, during,
15 or after visits.

16 **B. Findings and Orders**

- 17 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
18 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in
19 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
20 child is the United States.
- 21 2) **The parties are ordered to appear in person or via Zoom video at 9am on 9/15/2026 in**
22 **Department 404. The parties shall be prepared to discuss alternatives to Rally visitation for**
23 **Mother and provide updates to the Court regarding Mother's video visits and family**
24 **therapy.**

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

EHSAN HAMIDI,

Petitioner

VS.

ALLISON PAZ,

Respondent

) Case Number: FDI-25-801833

) Hearing Date: September 15, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER OF CHILD CUSTODY, VISITATION (PARENTING TIME), ORDER FOR
CUSTODY EVALUATION, PLAY THERAPY AND PRESCHOOL

TENTATIVE RULING

**The parties are ordered to appear in person or via Zoom Video on 9/15/2026 at 11am in
Department 404. If a party chooses to appear by Zoom, that party must abide by the Notice and
Instructions for Remote Appearance in San Francisco Family Court set forth above.**

A. Procedural History

- 1) Petitioner Ehsan Hamidi (Father) and Respondent Allison Paz (Mother) have one minor child together, Esther (DOB 8/16/2023, age 3). On 7/23/2025, Mother filed a request for a Domestic Violence Restraining Order against Father seeking protection for herself and Esther. Pursuant to a Stipulation and Order filed 12/8/2025, the parties agreed, among other things, that neither party shall solicit or initiate in-person contact with the other party. The parties also agreed to share joint legal and physical custody of Esther on a 2-2-3 schedule and to select a child custody mediator to assist in developing a comprehensive parenting plan.
- 2) On for hearing is Mother's request for the parenting time schedule to be "temporarily altered so that [Father] have custodial time with Esti" every other Saturday at 9am to Sunday at 6pm and

1 Wednesday from 3:30pm to 6:30pm. She also seeks an order for play therapy for Esther, an order
2 for Esther to attend preschool rather than daycare, and an order for a child custody evaluation on
3 the issues of: (a) legal custody; (b) preschool choice; (c) parental access; (d) the parties' ability
4 and willingness to support the other party's religious and cultural values; and (e) whether
5 ancillary services may be of benefit to either party or to Esther.

- 6 3) Father has filed a response in which he disagrees with Mother's characterization of Esther's
7 behavior and states he has worked in good faith to talk to Mother about issues relating to play
8 therapy, preschool, and other issues. Father states he does not believe a child custody evaluation
9 is necessary for the same reasons he did not think one was necessary last year; he states, "it is
10 costly and risks reopening an arrangement Judge Costin already found sound." He asks for the
11 Court to: (a) decline to modify the 2-2-3 schedule "absent a more complete evidentiary record
12 showing a material change in circumstances"; (b) decline to order play therapy without a
13 threshold neutral clinical assessment of need by an in-network child therapist; (c) order the parties
14 to resolve the preschool dispute through coparenting counseling already provided for in the
15 12/8/2025 Stipulation and Order; (d) order the parties to participate in custody mediation to
16 develop a full parenting plan in good faith, per the 12/8/2025 Stipulation and Order; (f) order
17 Father to be permitted to relocate with Esther within 50 minutes to the mid-peninsula; (g) reserve
18 the issue of monetary sanctions and attorney fees with respect to any allegation the Court finds to
19 have been knowingly false.
- 20 4) On 9/8/2026, Mother filed a reply as well as a declaration from her father regarding what he
21 observed during a custody exchange. On 9/10/2026, Father filed a (a) notice of intent to present
22 live testimony; (b) objection to the reply declaration; and (c) objections to and requests to strike
23 portions of Mother's request and reply.

24 **B. Findings and Orders**

- 25 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
26 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in
27 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
28 child is the United States.

1 **2) The parties are ordered to appear in person or via Zoom Video on 9/15/2026 at 11am in**
2 **Department 404.**
3
4
5
6
7
8
9
10
11
12
13
14
15
16
17
18
19
20
21
22
23
24
25
26
27
28
29

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

JENNIFER KAIN,

Petitioner

VS.

SHANE KING,

Respondent

) Case Number: FDV-17-813669

) Hearing Date: September 15, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER FOR CHANGE OF CHILD CUSTODY VISITATION (PARENTING TIME),
AND TIER II INTERVIEW WITH MINOR CHILD

TENTATIVE RULING

The parties are ordered to appear in person or via Zoom Video on 9/15/2026 at 9am in Department 404. If a party chooses to appear by Zoom, that party must abide by the Notice and Instructions for Remote Appearance in San Francisco Family Court set forth above.

A. Procedural History

- 1) Petitioner Jennifer Kain (Mother) and Respondent Shane King (Father) have one minor child together, Tallulah, who is almost 17 years old (DOB 10/13/2009). The parties have shared joint legal and physical custody since 2018, with the exception that Father has sole legal custody with respect to school selection and enrollment. Since then, the parties have reached a number of agreements through mediation with Family Court Services.
- 2) On 4/30/2026, Mother filed a request for modification of the current 50/50 physical custody order and a Tier II interview of Tallulah. She states that based on Tallulah's age, maturity, and her needs and stated wishes, she would like Tallulah to "transition . . . to a stable primary residence in my home to provide the emotional stability and stress reduction required for her continued health

1 and academic success as she enters the most critical years of high school.” Father filed a response
2 on 5/27/2026, opposing this request, stating, among other things, that Tallulah is a “remarkable
3 young woman” who is doing well under the current custodial plan that has been in place for many
4 years. He states that he respects Tallulah’s wishes, but that her preference for one home over
5 another, “particularly where that preference may reflect fewer rules and expectations rather than
6 any harm,” does not constitute a material change in circumstances justifying a change in custody.
7 On 6/1/2026, Mother filed an update declaration stating, among other things, that the material
8 change in circumstances is that Tallulah is now a “highly mature and responsible” 16.5-year-old
9 who is able to express her wishes and deserves to be heard. She provides additional information
10 to the Court regarding Tallulah’s health and school and home situation. The Court has reviewed
11 and considered both parties’ declarations.

- 12 3) On 8/13/2026, the Court ordered a Tier II interview of Tallulah for 9/1/2026 and set the matter for
13 further hearing on 9/15/2026. Family Court Services conducted the Tier II interview and a report
14 of the interview has been provided to the Court and to the parties.

15 **B. Findings and Orders**

- 16 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
17 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in
18 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
19 child is the United States.
- 20 2) **The parties are ordered to appear in person or via Zoom Video on 9/15/2026 at 9am in**
21 **Department 404.**
- 22
23
24
25
26
27
28
29

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SAN FRANCISCO

UNIFIED FAMILY COURT

JOHN HOFMEYER,

Petitioner

VS.

GABRIELA HOFMEYER,

Respondent

) Case Number: FDI-18-790640

) Hearing Date: September 15, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

ENFORCEMENT OF SETTLEMENT PRODUCTION AND PRESERVATION OF DISBURSEMENT

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties in this matter are Petitioner John Hofmeyer (Husband) and Respondent Gabriela Hofmeyer (Wife). The parties married on 11/11/2006. At the prior 4/2/2026 hearing date, the Court made a finding that the parties' date of separation is 8/13/2018, for a marriage of 11 years and 9 months. The parties have one adult child, Lyra (DOB: 9/23/2007, age 18) and one minor child, Bryce (DOB: 4/19/2010, age 16). Husband is self-represented. Wife was formerly represented by attorney Allyson Overton and is now self-represented as of 8/13/2026.
- 2) A detailed procedural history of this case is set forth in the Findings and Order After Hearing filed 7/8/2026.
- 3) On for hearing is Husband's Request for Order filed 7/20/2026. Husband states that Wife did not comply with the orders set forth in the Findings and Order After Hearing filed 7/8/2026 which require Wife to produce to Husband by 7/15/2026 "the final Safeco settlement agreement and release; the request for dismissal, dismissal, and related proof of service documents; any

1 settlement statement or disbursement ledger; copies of settlement checks, endorsements, and
2 deposit records; and a verified accounting of all proceeds received, deposited, transferred,
3 withheld, or disbursed in connection with the Safeco claim and related litigation.” Husband states
4 that he contacted Wife’s attorney regarding the lack of receipt of the Court-ordered documents
5 and received no response. Husband asks the Court to order Wife to produce the documents within
6 3 Court days and set a compliance review hearing within 10 calendar days after the hearing, with
7 the Court reserving jurisdiction to impose sanctions or other enforcement remedies. Husband also
8 asks the Court to order Wife to “preserve all remaining Safeco insurance settlement proceeds,
9 together with any funds, accounts, assets, or property traceable to those proceeds, pending further
10 order of the Court.” Husband further asks the Court to order Wife not to “transfer, withdraw,
11 spend, assign, encumber, conceal, commingle, dissipate, distribute, pledge, or otherwise dispose
12 of any remaining Safeco insurance settlement proceeds of any funds, accounts, assets, or property
13 traceable to those proceeds.”

- 14 4) On 7/27/2026, Husband filed a Supplemental Declaration wherein Husband reiterates his
15 requested orders and attaches as an exhibit a copy of the Court’s Findings and Order After
16 Hearing filed 7/8/2026.
- 17 5) Per the Proof of Service filed 8/3/2026, Husband’s Request for Order and Supplemental
18 Declaration were emailed to Wife’s attorney Allysyn Overton on 7/31/2026.
- 19 6) On 8/11/2026, Husband filed an Amended Request for Order. Husband states that despite
20 additional attempts to contact Wife’s attorney, Wife has not complied with the Findings and
21 Order After Hearing filed 7/8/2026. Husband now asks the Court to make the following orders:

22 **“1. Finding of Noncompliance**

23 Find that Respondent failed to comply with Section B, paragraphs 5 and 6 of the June 23,
24 2026 Findings and Orders After Hearing by the July 15, 2026 deadline and remains out of
25 compliance. Section B, paragraphs 5 and 6 remain in full force and effect, and the relief
26 requested herein supplements and enforces those existing orders.

27 **2. Immediate Production of Settlement Agreement**

28

29

Order Respondent to produce a complete and unredacted copy of the final executed Safeco settlement agreement and release no later than **5:00 p.m. Pacific Time on September 17, 2026.**

3. Immediate Production of Financial Account Statements

Order Respondent to produce, no later than **5:00 p.m. Pacific Time on September 17, 2026**, complete monthly statements from January 1, 2025 through the present for each financial account owned or controlled by Respondent, individually or jointly, that received, held, transferred, or disbursed Safeco claim or settlement proceeds. Redactions shall be limited to account numbers.

4. Verified Accounting

Order Respondent to provide, no later than **5:00 p.m. Pacific Time on September 17, 2026**, the verified accounting required by Section B, paragraph 5 of the June 23, 2026 Findings and Orders After Hearing, identifying all proceeds received, deposited, transferred, withheld, or disbursed in connection with the Safeco claim and related litigation.

5. Authorization and Contingent Elisor

Approve the **Authorization, Consent, and Waiver of Confidentiality attached as Exhibit D** and order Respondent to execute and provide the Authorization to Petitioner no later than **5:00 p.m. Pacific Time on September 17, 2026**. If Respondent does not comply by that deadline, appoint the **Clerk of the Court or Clerk's Designee as elisor** to execute the identical Authorization on Respondent's behalf no sooner than **8:30 a.m. Pacific Time on September 18, 2026**, without further noticed motion or hearing.

6. Preservation of Remaining Proceeds

Order Respondent to preserve all remaining Safeco claim or settlement proceeds and assets traceable to those proceeds pending completion of the verified accounting and appropriate allocation of available proceeds toward repair and restoration of the **community property.**

7. Compliance Review

1 Set a compliance-review hearing for **October 6, 2026, or the Court's earliest available**
2 **date thereafter**, to determine Respondent's compliance with Section B, paragraphs 5 and
3 6 of the June 23, 2026 Findings and Orders After Hearing and the enforcement orders
4 entered herein."

5 7) There is no Proof of Service on file demonstrating service of Husband's 8/11/2026 Amended
6 Request for Order.

7 8) On 8/13/2026, a Substitution of Attorney was filed wherein attorney Allysyn Overton substituted
8 out of this case. Wife is now self-represented.

9 9) On 9/8/2026, Husband filed a Supplemental Declaration in Support of Amended Request for
10 Orders. Husband states that on 8/19/2026, he received from Safeco's counsel an unredacted and
11 fully executed copy of the Confidential Settlement Agreement and Release, which he attaches as
12 Exhibit E. Husband states that the Settlement Agreement required Wife to deposit or interplead
13 one of the settlement checks in the Family Law Matter. Husband further states that he obtained a
14 copy of that check from Safeco, which was payable to five payees, and that records reflect the
15 check was paid on 1/28/2025. Husband states that he did not endorse the check and that the other
16 payees he contacted were unaware of the check. Husband states that there is no record that the
17 check was deposited or interpleaded in this Family Law Matter. Husband further states that
18 Safeco records reflect payments of \$140,684.79 on 1/2/2025 and \$223,000 on 1/3/2025, which do
19 not account for the full settlement amount. Husband contends that these records demonstrate the
20 need for the previously requested accounting and preservation relief. Husband also reports that a
21 Notice of Trustee's Sale was recorded against the Property on 9/1/2026, setting a sale for
22 9/30/2026 at 9:00 a.m. and stating an estimated unpaid balance and other charges of \$677,007.37.
23 Husband states he is not asking the Court to enjoin the trustee's sale.

24 10) Husband modifies his requests as follows:

25
26 "Because I obtained the fully executed Settlement Agreement directly from Safeco's counsel,
27 I withdraw Requested Order No. 2, Immediate Production of Settlement Agreement, as no
28 longer necessary.
29

1 I withdraw Requested Order No. 5, Authorization and Contingent Elisor, only insofar as it
2 concerns the Settlement Agreement itself. I continue to request the Authorization and the
3 contingent elisor as to the complete Safeco and Liberty Mutual claim file. Safeco has
4 identified confidentiality restrictions concerning post-settlement litigation and related activity
5 that Section 5.3(iv) does not address, and the complete claim file has not been produced to
6 me.

7
8 I continue to request Requested Orders Nos. 1, 3, 4, 6, and 7 of Attachment 7 to my Amended
9 Request for Order. In particular, in light of the U.S. Bank developments described above, I
10 continue to request the preservation relief stated in Requested Order No. 6.

11
12 I respectfully request that any orders made at the September 15, 2026 hearing be effective
13 upon pronouncement in open court and that the Court state the compliance deadlines on the
14 record, so that the deadlines requested in my Amended Request for Order are not affected by
15 the time required to prepare and enter the written findings and order after hearing.”

16
17 I therefore request that the scope of the follow-up compliance and enforcement hearing
18 include, in addition to the compliance and enforcement issues already requested:

- 19 a. reconciliation of the \$651,000.00 Settlement Payment and determination of the amount
20 received, deposited, transferred, withheld, disbursed, expended, remaining, or
21 unaccounted for;
- 22 b. characterization of the Safeco settlement proceeds;
- 23 c. determination of the amount of available proceeds subject to preservation and
24 allocation by this Court;
- 25 d. following characterization, transfer of proceeds determined to constitute community
26 property into an interest-bearing blocked account or other neutral depository designated
27 by the Court, with no withdrawal, transfer, encumbrance, or disbursement except
28 pursuant to further order of the Court; and
29

1 e. determination of the appropriate allocation and disbursement of proceeds determined to
2 constitute community property.

3
4 If the Court determines that available Safeco settlement proceeds constitute community
5 property, I request that the Court consider their application, in priority, to the following:

6 a. payment of reasonable and necessary costs to repair and restore the community
7 Property; and

8 b. payment of amounts necessary to cure or reinstate the first mortgage secured by the
9 Property.

10
11 I request neutral custody of proceeds determined to constitute community property so that the
12 funds remain preserved while the Court directs their allocation and disbursement, and that no
13 withdrawal or disbursement from the blocked account or other Court-designated depository
14 occur except pursuant to further order of this Court.”

15
16 11) Per the Proof of Service filed 9/11/2026, Husband’s Supplemental Declaration in Support of
17 Amended Request for Orders was mailed to Wife on 9/11/2026.

18 12) Wife has filed no pleadings responding to Husband’s Request for Order filed 7/20/2026, Husband
19 Amended Request for Order filed 8/11/2026, or Husband’s Supplemental Declaration in Support
20 of Amended Request for Orders filed 9/8/2026.

21 13) The Court notes the following future hearing dates:

22 a. 10/6/2026 – Hearing on Ms. Overton’s Motion to be Relieved as Counsel

23 b. 10/23/2026 – Mandatory Settlement Conference

24 **B. Findings and Order**

25 1) The Court notes that Section 5.3 of the Settlement Agreement attached as Exhibit E to Husband’s
26 9/8/2026 Supplemental Declaration in Support of Amended Request for Orders states: “The
27 Parties agree that this Agreement and all of its terms, including the Settlement Payment, shall
28 remain strictly confidential and shall not be disclosed or otherwise published to any third parties.
29 As limited exceptions to the foregoing, this Agreement and all of its terms may be disclosed: (i)

1 to the Parties' attorneys, accountants, and tax professionals; (ii) to Safeco's reinsurers; (iii) for
2 interpretation and/or enforcement purposes; (iv) for purposes of depositing or interpleading
3 Settlement Check No. 1 in the Family Law Matter and/or for any necessary purpose relating to
4 the Family Law Matter; and (v) as otherwise required by law, including, but not limited to, for
5 necessary regulatory purposes. The Parties further agree that, if this Agreement and/or any of its
6 terms is filed or otherwise lodged or disclosed with or to a court for enforcement, interpretation
7 and/or other approved purposes stated herein, the Party or Parties filing, lodging or disclosing the
8 Agreement and/or any of its terms shall seek to do so under seal. The Parties agree to notify each
9 other in the event they receive any request, discovery request, subpoena or court order calling or
10 potentially calling for production or disclosure of this Agreement or any testimony relating to it.
11 The Parties agree that this confidentiality provision is a material part of this Agreement."

- 12 2) Based on the foregoing, on the Court's own motion, the Court finds good cause to seal the
13 entirety of Husband's 9/8/2026 Supplemental Declaration in Support of Amended Request for
14 Orders. Husband is admonished not to attach the confidential settlement agreement to future
15 declarations. Husband is also admonished to follow California Rules of Court, rule 2.551 and
16 request to file under seal any future declarations wherein he specifically references the
17 Confidential Settlement Agreement signed by Wife and Safeco.
- 18 3) The Court finds that Husband's original Request for Order was properly served in advance of the
19 9/15/2026 hearing date, and Wife did not file an opposition or response. The Court finds good
20 cause to grant the following request sought in Husband's original Request for Order (which was
21 reiterated in Husband's Amended Request for Order and Husband's Supplemental Declaration in
22 Support of Amended Request for Orders). Effective immediately, Wife shall not transfer,
23 withdraw, spend, assign, encumber, conceal, commingle, dissipate, distribute, pledge, or
24 otherwise dispose of any remaining Safeco insurance settlement proceeds or any funds, accounts,
25 assets, or property traceable to those proceeds.
- 26 4) Because there is no Proof of Service demonstrating service of Husband's Amended Request for
27 Order filed 8/11/2026, and because Husband's Supplemental Declaration in Support of Amended
28 Request for Orders filed 9/8/2026 was not served at least 16 Court days before the 9/15/2026
29

1 hearing, the Court finds good cause to set a future hearing date of **Tuesday, 10/6/2026 at 9:00**
2 **AM in Dept. 404** to address the requests set forth in those pleadings.

- 3 5) No later than 9/15/2026 at 5:00 PM, Husband shall mail and email a copy of his Amended
4 Request for Order filed 8/11/2026 to Wife. Husband shall file a Proof of Service demonstrating
5 compliance with this order in advance of the next hearing date.
- 6 6) Wife shall file and serve a Responsive Declaration at least 9 Court days prior to the 10/6/2026
7 hearing date.
- 8 7) Husband shall file and serve a Reply Declaration at least 5 Court days prior to the 10/6/2026
9 hearing date.
- 10 8) The Court will prepare the Findings and Order After Hearing.
- 11
12
13
14
15
16
17
18
19
20
21
22
23
24
25
26
27
28
29